In what Cases Subiects are absolved of their obedience to their Soveraign.

The Obligation of Subjects to the Soveraign, is understood to last as long, and no longer, than the power lasteth, by which he is able to protect them. For the right men have by Nature to protect themselves, when none else can protect them, can by no Covenant be relinquished. The Soveraignty is the Soule of the Common-wealth; which once departed from the Body, the members doe no more receive their motion from it. The end of Obedience is Protection; which, wheresoever a man seeth it, either in his own, or in anothers sword, Nature applyeth his obedience to it, and his endeavour to maintaine it. And though Soveraignty, in the intention of them that make it, be immortall; yet is it in its own nature, not only subject to violent death, by forreign war; but also through the ignorance, and passions of men, it hath in it, from the very institution, many seeds of a naturall mortality, by Intestine Discord.

In case of Captivity.

If a Subject be taken prisoner in war; or his person, or his means of life be within the Guards of the enemy, and hath his life and corporall Libertie given him, on condition to be Subject to the Victor, he hath Libertie to accept the condition; and having accepted it, is the subject of him that took him; because he had no other way to preserve himself. The case is the same, if he be deteined on the same termes, in a forreign country. But if a man be held in prison, or bonds, or is not trusted with the libertie of his bodie; he cannot be understood to be bound by Covenant to subjection; and therefore may, if he can, make his escape by any means whatsoever.

In case the Soveraign cast off the government from himself and his Heyrs.

If a Monarch shall relinquish the Soveraignty, both for himself, and his heires; His Subjects returne to the absolute Libertie of Nature; because, though Nature may declare who are his Sons, and who are the nerest of his Kin; yet it dependeth on his own will, (as hath been said in the precedent chapter,) who shall be his Heyr. If therefore he will have no Heyre, there is no Soveraignty, nor Subjection. The case is the same, if he dye without known Kindred, and without declaration of his Heyre. For then there can no Heire be known, and consequently no Subjection be due.

In case of Banishment.

If the Soveraign Banish his Subject; during the Banishment, he is not Subject. But he that is sent on a message, or hath leave to travell, is still Subject; but it is, by Contract between Soveraigns, not by vertue of the covenant of Subjection. For whosoever entreth into anothers dominion, is Subject to all the Laws thereof; unlesse he have a privilege by the amity of the Soveraigns, or by speciall licence.

In case the Soveraign render himself Subject to another.

If a Monarch subdued by war, render himself Subject to the Victor; his Subjects are delivered from their former obligation, and become obliged to the Victor. But if he be held prisoner, or have not the liberty of his own Body; he is not understood to have given away the Right of Soveraigntie; and therefore his Subjects are obliged to yield obedience to the Magistrates formerly placed, governing not in their own name, but in his. For, his Right remaining, the question is only of the Administration; that is to say, of the Magistrates

ſtrates and Officers; which, if he have not means to name, he is ſuppoſed to approve thoſe, which he himſelf had formerly appointed.

CHAP. XXII.

Of SYSTEMES *Subject, Politicall, and Private.*

HAving ſpoken of the Generation, Forme, and Power of a Common-wealth, I am in order to ſpeak next of the parts thereof. And firſt of Syſtemes, which reſemble the ſimilar parts, or Muſcles of a Body naturall. By SYSTEMES; I underſtand any numbers of men joyned in one Intereſt, or one Buſineſſe. Of which, ſome are *Regular*, and ſome *Irregular*. *Regular* are thoſe, where one Man, or Aſſembly of men, is conſtituted Repreſentative of the whole number. All other are *Irregular*.

The divers ſorts of Syſtemes of People.

Of Regular, ſome are *Abſolute*, and *Independent*, ſubject to none but their own Repreſentative: ſuch are only Common-wealths; Of which I have ſpoken already in the 5. laſt precedent chapters. Others are Dependent; that is to ſay, Subordinate to ſome Soveraign Power, to which every one, as alſo their Repreſentative is *Subject*.

Of Syſtemes ſubordinate, ſome are *Politicall*, and ſome *Private*. *Politicall* (otherwiſe Called *Bodies Politique*, and *Perſons in Law*,) are thoſe, which are made by authority from the Soveraign Power of the Common-wealth. *Private*, are thoſe, which are conſtituted by Subjects amongſt themſelves, or by authoritie from a ſtranger. For no authority derived from forraign power, within the Dominion of another, is Publique there, but Private.

And of Private Syſtemes, ſome are *Lawfull*; ſome *Unlawfull*: *Lawfull*, are thoſe which are allowed by the Common-wealth: all other are *Unlawfull*. *Irregular* Syſtemes, are thoſe which having no Repreſentative, conſiſt only in concourſe of People; which if not forbidden by the Common-wealth, nor made on evill deſigne, (ſuch as are conflux of People to markets, or ſhews, or any other harmeleſſe end,) are Lawfull. But when the Intention is evill, or (if the number be conſiderable) unknown, they are Unlawfull.

In Bodies Politique, the power of the Repreſentative is alwaies Limited: And that which preſcribeth the Limits thereof, is the Power Soveraign. For Power Unlimited, is abſolute Soveraignty. And the Soveraign, in every Commonwealth, is the abſolute Repreſentative of all the ſubjects; and therefore no other, can be Repreſentative of any part of them, but ſo far forth, as he ſhall give leave: And to give leave to a Body Politique of Subjects, to have an abſolute Repreſentative to all intents and purpoſes, were to abandon the government of ſo much of the Commonwealth, and to divide the Dominion, contrary to their Peace and Defence, which the Soveraign cannot be underſtood to doe, by any Grant, that does not

In all Bodies Politique the power of the Repreſentative is Limited.

plainly, and directly discharge them of their subjection. For consequences of words, are not the signes of his will, when other consequences are signes of the contrary; but rather signes of errour, and misreckonning; to which all mankind is too prone.

The bounds of that Power, which is given to the Representative of a Bodie Politique, are to be taken notice of, from two things. One is their Writt, or Letters from the Soveraign: the other is the Law of the Common-wealth.

By Letters Patents:

For though in the Institution or Acquisition of a Common-wealth, which is independent, there needs no Writing, because the Power of the Representative has there no other bounds, but such as are set out by the unwritten Law of Nature; yet in subordinate bodies, there are such diversities of Limitation necessary, concerning their businesses, times, and places, as can neither be remembred without Letters, nor taken notice of, unlesse such Letters be Patent, that they may be read to them, and withall sealed, or testified, with the Seales, or other permanent signes of the Authority Soveraign.

And the Lawes.

And because such Limitation is not alwaies easie, or perhaps possible to be described in writing; the ordinary Lawes, common to all Subjects, must determine, what the Representative may lawfully do, in all Cases, where the Letters themselves are silent. And therefore

When the Representative is one man, his unwarranted Acts are his own onely.

In a Body Politique, if the Representative be one man, whatsoever he does in the Person of the Body, which is not warranted in his Letters, nor by the Lawes, is his own act, and not the act of the Body, nor of any other Member thereof besides himselfe: Because further than his Letters, or the Lawes limit, he representeth no mans person, but his own. But what he does according to these, is the act of every one: For of the Act of the Soveraign every one is Author, because he is their Representative unlimited; and the act of him that recedes not from the Letters of the Soveraign, is the act of the Soveraign, and therefore every member of the Body is Author of it.

When it is an Assembly, it is the act of them that assented onely.

But if the Representative be an Assembly; whatsoever that Assembly shall Decree, not warranted by their Letters, or the Lawes, is the act of the Assembly, or Body Politique, and the act of every one by whose Vote the Decree was made; but not the act of any man that being present Voted to the contrary; nor of any man absent, unlesse he Voted it by procuration. It is the act of the Assembly, because Voted by the major part; and if it be a crime, the Assembly may be punished, as farre-forth as it is capable, as by dissolution, or forfeiture of their Letters, (which is to such artificiall, and fictitious Bodies, capitall,) or (if the Assembly have a Common stock, wherein none of the Innocent Members have propriety,) by pecuniary Mulct. For from corporall penalties Nature hath exempted all Bodies Politique. But they that gave not their Vote, are therefore Innocent, because the Assembly cannot Represent any man in things unwarranted by their Letters, and consequently are involved in their Votes.

When the Representative is one man, if he borrow

If the person of the Body Politique being in one man, borrow mony of a stranger, that is, of one that is not of the same Body, (for no Letters need limit borrowing, seeing it is left to mens own inclinations

nations to limit lending) the debt is the Repreſentatives. For if he ſhould have Authority from his Letters, to make the members pay what he borroweth, he ſhould have by conſequence the Soveraignty of them; and therefore the grant were either voyd, as proceeding from Errour, commonly incident to humane Nature, and an unſufficient ſigne of the will of the Granter; or if it be avowed by him, then is the Repreſenter Soveraign, and falleth not under the preſent queſtion, which is onely of Bodies ſubordinate. No member therefore is obliged to pay the debt ſo borrowed, but the Repreſentative himſelfe: becauſe he that lendeth it, being a ſtranger to the Letters, and to the qualification of the Body, underſtandeth thoſe onely for his debtors, that are engaged; and ſeeing the Repreſenter can ingage himſelfe, and none elſe, has him onely for Debtor; who muſt therefore pay him, out of the common ſtock (if there be any,) or (if there be none) out of his own eſtate.

mony, or owe it by Contract; he is lyable onely, the members not.

If he come into debt by Contract, or Mulct, the caſe is the ſame.

When it is an Aſſembly, they onely are liable that have aſſented.

But when the Repreſentative is an Aſſembly, and the debt to a ſtranger; all they, and onely they are reſponſible for the debt, that gave their votes to the borrowing of it, or to the Contract that made it due, or to the fact for which the Mulct was impoſed; becauſe every one of thoſe in voting did engage himſelfe for the payment: For he that is author of the borrowing, is obliged to the payment, even of the whole debt, though when payd by any one, he be diſcharged.

If the debt be to one of the Aſſembly, the Body onely is obliged.

But if the debt be to one of the Aſſembly, the Aſſembly onely is obliged to the payment, out of their common ſtock (if they have any:) For having liberty of Vote, if he Vote the Mony, ſhall be borrowed, he Votes it ſhall be payd; If he Vote if ſhall not be borrowed, or be abſent, yet becauſe in lending, he voteth the borrowing, he contradicteth his former Vote, and is obliged by the later, and becomes both borrower and lender, and conſequently cannot demand payment from any particular man, but from the common Treaſure onely; which fayling he hath no remedy, nor complaint, but againſt himſelfe, that being privy to the acts of the Aſſembly, and to their means to pay, and not being enforced, did nevertheleſſe through his own folly lend his mony.

Proteſtation againſt the Decrees of Bodies Politique ſometimes lawful; but againſt Soveraign Power never.

It is manifeſt by this, that in Bodies Politique ſubordinate, and ſubject to a Soveraign Power, it is ſometimes not onely lawfull, but expedient, for a particular man to make open proteſtation againſt the decrees of the Repreſentative Aſſembly, and cauſe their diſſent to be Regiſtred, or to take witneſſe of it; becauſe otherwiſe they may be obliged to pay debts contracted, and be reſponſible for crimes committed by other men: But in a Soveraign Aſſembly, that liberty is taken away, both becauſe he that proteſteth there, denies their Soveraignty; and alſo becauſe whatſoever is commanded by the Soveraign Power, is as to the Subject (though not ſo alwayes in the ſight of God) juſtified by the Command; for of ſuch command every Subject is the Author.

Bodies Politique for Government of a Province, Colony, or Town.

The variety of Bodies Politique, is almoſt infinite: for they are not onely diſtinguiſhed by the ſeverall affaires, for which they are